

Circular Memo.No.2222/SC.E/96-1, Genl.Admn. (SC.E) Dept., dt.14.11.1996 regarding Section Officers and ASOs not to offer first person suggestions or opinion.

Subject Heading : SOs, ASOs - not to offer first person suggestions

Ref : From the Vigilance Commissioner, A.P.,Lr.No.587/VC.F2/96-1, dt.15.07.96.

In the letter cited, while referring a case of I & C.A.D. Department, the Vigilance Commissioner, Andhra Pradesh Vigilance Commission, Hyderabad has brought to the notice of the Government that while examining the cases, noting at Section level are giving opinions and suggestions deviating certain decisions taken earlier in circulation, and requested to issue instructions to all the Departments of Secretariat to prevent such notings in Secretariat files.

2. In this connection para 95(v) of the A.P.Secretariat Office Manual is extracted below:

“(v) Office not to give suggestions or opinions in notes:- In noting Section Officers and Clerks should bear in mind that opinions and suggestions, unless they are specifically founded on statute, rule or precedent or are clear from the nature of the case are the province of Gazetted Officers. It is therefore presumptuous for Section Officers and Clerks to give expression to personal views unless specially asked to do so. Hence it follows that in writing notes, Section Officers and Clerks should refrain from making use of the first person”.

3. Thus according to para 95(v), it is not permissible to the Section Officers and Assistant Section Officers to give opinions or suggestions in the note file while examining cases as to the decision to be taken unless specifically asked for to do so.

4. The Departments of Secretariat are therefore requested to issue necessary instructions to all the Section Officers and Assistant Section Officers working under their administrative control to follow the instructions issued in para 95(v) of the Secretariat Office Manual scrupulously while dealing with the cases.